

VANEGAS ORTIZ, LINA JOHANNA
A-Number: 241-496-404
NON-DETAINED

UNITED STATES DEPARTMENT OF JUSTICE
EXECUTIVE OFFICE FOR IMMIGRATION REVIEW
BOARD OF IMMIGRATION APPEALS

In the Matter of:
VANEGAS ORTIZ, LINA JOHANNA | A-Number: 241-496-404

In Removal Proceedings
The Immigration Judge Ordered Removal: April 8, 2026

**RESPONDENT'S BRIEF IN SUPPORT OF APPEAL BEFORE THE BOARD OF
IMMIGRATION APPEALS
OF AN IMMIGRATION JUDGE'S DECISION**

I. INTRODUCTION

COMES NOW, VANEGAS ORTIZ, LINA JOHANNA (A# 241-496-404), Respondent, and respectfully submits this Brief in support of her Appeal of the decision issued by Immigration Judge Audra R. Behne on April 8, 2026, which denied her applications for asylum, Withholding of Removal (INA §241(b)(3)), and protection under the Convention Against Torture (CAT), and ordered her removed to Ecuador or Honduras under the Asylum Cooperative Agreements (ACAs).

The Immigration Judge committed multiple reversible errors of law and fact. Most critically, Respondent was denied a meaningful opportunity to present her case due to the ineffective assistance of her prior counsel, whose failures deprived the Immigration Judge of the opportunity to evaluate documented, specific, and credible evidence of persecution contained in Respondent's I-589 application — evidence that was part of the official court record but was never argued, presented, or developed before the Court.

II. STATEMENT OF THE CASE AND RELEVANT FACTS

Respondent Lina Johanna Vanegas Ortiz is a native and citizen of Colombia who entered the United States on September 6, 2023, and timely filed an application for asylum and protection. On September 18, 2023, Respondent attended a Credible Fear Interview with USCIS, where she presented her fear of returning to Colombia. Following that interview, a Notice to Appear was issued and Respondent was placed in removal proceedings.

As documented in her I-589 application — part of the official court record — Respondent left Colombia because an organized criminal group extorted her, demanded payments she could not afford, physically assaulted her, threatened her with death, and threatened to kidnap and harm her minor daughter, Paula Andrea Vanegas Ortiz. Respondent filed a formal complaint with local police, who took no action. Because of this injustice and the ongoing danger to her life and her daughter's life, she made the decision to leave her country of origin.

On February 24, 2026, DHS filed a motion to pretermite Respondent's applications based on the Asylum Cooperative Agreements with Ecuador and Honduras. Prior counsel failed to file any written opposition. On April 8, 2026, an individual hearing was scheduled virtually via Webex. Prior counsel failed to advise Respondent that the hearing was virtual, instead instructing her to appear at counsel's office. Respondent arrived at counsel's office 15 minutes late due to traffic and found no one present. As a result, Respondent was unable to testify or present any evidence at the hearing. The Immigration Judge granted DHS's motion and ordered Respondent removed.

III. RESPONDENT WAS DENIED DUE PROCESS DUE TO INEFFECTIVE ASSISTANCE OF COUNSEL

A. Legal Standard

The Fifth Amendment guarantees due process in immigration proceedings. *Matter of Lozada*, 19 I&N Dec. 637 (BIA 1988), establishes the framework for ineffective assistance of counsel claims in immigration cases. To prevail, a respondent must show that counsel's performance was deficient and that the deficiency prejudiced the outcome of the proceedings.

B. Prior Counsel's Failures

Prior counsel's representation fell far below any reasonable standard of professional competence. Specifically, counsel: (a) failed to file any written opposition to DHS's motion to pretermite filed February 24, 2026, despite having 43 days to respond; (b) failed to adequately prepare Respondent for the individual hearing, providing only a brief telephone call the night before with minimal scripted answers; and (c) failed to advise Respondent that the April 8, 2026 hearing was virtual via Webex, instead requiring her to travel to counsel's office, where she arrived 15 minutes late due to traffic and found no one present.

As a direct result of these failures, Respondent was denied any meaningful opportunity to testify, present evidence, or argue her case before the Immigration Judge. The Immigration Judge's decision expressly relies on Respondent's failure to appear and the absence of evidence or testimony — failures that were caused entirely by prior counsel's deficient performance, not by any fault of Respondent. This constitutes a fundamental violation of due process that warrants remand for a full and fair hearing.

IV. THE IMMIGRATION JUDGE ERRED BY FAILING TO EVALUATE MATERIAL EVIDENCE ALREADY IN THE RECORD

Respondent's I-589 application, which is part of the official court record, contains detailed and specific testimony documenting: (1) extortion by an organized criminal group; (2) physical assault; (3) specific death threats; (4) threats of kidnapping against her minor daughter; and (5) the Colombian authorities' failure to act upon her formal police complaint. This evidence was never argued, presented, or developed before the Court due entirely to prior counsel's ineffective assistance.

The Board has held that ignoring material evidence of record constitutes reversible error. *Garland v. Ming Dai*, 593 U.S. 357 (2021). As a direct result of counsel's failures, the Immigration Judge was deprived of the opportunity to evaluate this specific, individualized evidence on its merits. This warrants remand for a full evidentiary hearing at which Respondent can present her complete case.

V. RESPONDENT IS A MEMBER OF A COGNIZABLE PARTICULAR SOCIAL GROUP

Respondent is a member of the cognizable particular social group of 'Colombian women who reported criminal extortion to authorities that failed to protect them and who were subsequently targeted with specific death threats and threats against their minor children.' This group satisfies the required elements of particularity, social distinction, and immutability under *Matter of M-E-V-G-*, 26 I&N Dec. 227 (BIA 2014) and *Matter of W-G-R-*, 26 I&N Dec. 208 (BIA 2014).

The persecution Respondent suffered was not random generalized violence. It was specifically directed at her as retaliation for reporting the criminal group to police, establishing the required nexus to a protected ground. The criminal group's threats escalated precisely because Respondent exercised her right to seek government protection — a fact documented in her I-589 but never evaluated on its merits by the Immigration Judge.

VI. THE IMMIGRATION JUDGE FAILED TO PROPERLY ANALYZE PROTECTION UNDER THE CONVENTION AGAINST TORTURE

A. Controlling Legal Standard

Under 8 C.F.R. §1208.16(c)(3), the Immigration Judge is legally required to consider ALL evidence relevant to the possibility of future torture. The Immigration Judge dismissed Respondent's CAT claim without conducting the required individualized analysis, relying instead on the absence of evidence that was absent only because of prior counsel's failures.

B. Risk of Torture in Ecuador and Honduras

Respondent has absolutely no connection to Ecuador or Honduras — no family, no history, no ties of any kind. If removed to either country, she would arrive as an undocumented single Colombian woman with no support network, no resources, and no protection. Country conditions evidence — which was never developed or presented due to counsel's failures — demonstrates that migrant women in both Ecuador and Honduras face a documented and extreme risk of sexual violence,

kidnapping, extortion, and murder at the hands of criminal organizations, with minimal or no government protection.

The specific testimony contained in Respondent's I-589 — documenting extortion, physical assault, death threats, and threats against her minor daughter — which was never argued by prior counsel, demonstrates a more-likely-than-not risk of torture in Ecuador or Honduras. The Immigration Judge's failure to conduct the required individualized CAT analysis constitutes reversible legal error. See *Delgado-Ortiz v. Holder*, 600 F.3d 1148 (9th Cir. 2010).

VII. THE SAFE THIRD COUNTRY BAR WAS INCORRECTLY APPLIED

Under *Matter of C-I-G-M- & L-V-S-G-*, 29 I&N Dec. 291 (BIA 2025), a respondent subject to the terms of an ACA must be given a meaningful opportunity to demonstrate that she will more likely than not be persecuted or tortured in the third country. That meaningful opportunity was effectively denied here due to prior counsel's failures.

Furthermore, Respondent preserves her objection to the retroactive application of the ACAs with Ecuador and Honduras to her case. Respondent entered the United States and filed her asylum application in 2023, before these agreements were implemented. While the BIA in *C-I-G-M-* held that retroactive application is permissible, this holding is subject to ongoing legal challenges in federal courts, and Respondent preserves this objection for further appellate review. See *Landgraf v. USI Film Products*, 511 U.S. 244 (1994).

VIII. CONCLUSION

For all the foregoing reasons, the Board should REVERSE the Immigration Judge's decision and REMAND the record for a full and fair hearing at which Respondent can: (1) testify regarding the specific persecution she suffered in Colombia; (2) present evidence of country conditions in Ecuador and Honduras relevant to her CAT claim; (3) fully develop her Particular Social Group claim; and (4) present all evidence contained in her I-589 application that was never evaluated on its merits due to prior counsel's ineffective assistance.

Respondent respectfully submits that she was denied a meaningful opportunity to present her case through no fault of her own, and that justice requires a full evidentiary hearing consistent with her due process rights.

Respectfully submitted,

VANEGAS ORTIZ, LINA JOHANNA

Respondent, Pro Se

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TABLE OF AUTHORITIES

Cases

Delgado-Ortiz v. Holder, 600 F.3d 1148 (9th Cir. 2010)
Garland v. Ming Dai, 593 U.S. 357 (2021)
Landgraf v. USI Film Products, 511 U.S. 244 (1994)
Matter of C-I-G-M- & L-V-S-G-, 29 I&N Dec. 291 (BIA 2025)
Matter of Lozada, 19 I&N Dec. 637 (BIA 1988)
Matter of M-E-V-G-, 26 I&N Dec. 227 (BIA 2014)
Matter of W-G-R-, 26 I&N Dec. 208 (BIA 2014)
Zetino v. Holder, 622 F.3d 1007 (9th Cir. 2010)

Statutes and Regulations

8 C.F.R. §1208.16(c)(3)
8 C.F.R. §1240.11(h)
INA §208(a)(2)(A), 8 U.S.C. §1158(a)(2)(A)
INA §241(b)(3)(A), 8 U.S.C. §1231(b)(3)(A)

1. List Names and Alien Numbers (A-Numbers) of all Respondents/Applicants.

WARNING: Names and A-Numbers for everyone appealing the Immigration Judge's decision must be written in item #1. The names and A-Numbers listed will be the only ones considered to be the subjects of the appeal.

2. I am the Respondent/Applicant DHS-ICE *(Mark only one box.)*
3. I am DETAINED NOT DETAINED *(Mark only one box).*
4. My last hearing was at: *(Location, City, State)*

5. **What decision are you appealing?**

Mark only one box below. If you want to appeal more than one decision, you must use more than one Notice of Appeal (Form EOIR-26).

I am filing an appeal from the Immigration Judge's decision *in merits proceedings* (example: removal, deportation, exclusion, asylum, etc.) dated

I am filing an appeal from the Immigration Judge's decision *in bond proceedings* dated (For DHS use only: Did DHS invoke the automatic stay provision before the Immigration Court? Yes No)

I am filing an appeal from the Immigration Judge's decision *denying a motion to reopen or a motion to reconsider* dated

I am filing an *interlocutory appeal* from the Immigration Judge's decision dated

(Please attach a copy of the Immigration Judge's decision that you are appealing.)

6. State in detail the reasons for this appeal. Please refer to the General Instructions at item F for further guidance. You are not limited to the space provided below; use more sheets of paper if necessary. Write your name(s) and A-Number(s) on every additional sheet.

(Attach additional sheets if necessary)

WARNING: You must clearly explain the specific facts and law on which you base your appeal of the Immigration Judge's decision. The Board may summarily dismiss your appeal if it cannot tell from this Notice of Appeal, or any statements attached to this Notice of Appeal, why you are appealing.

7. Do you desire oral argument before the Board of Immigration Appeals? Yes No

WARNING: If you mark “Yes” in item #7, you should also include in your statement in item #6 why you believe your case warrants review by a three-member panel. The Board ordinarily will not grant a request for oral argument unless you also file a brief.

8. Do you intend to file a separate written brief or statement after filing this Notice of Appeal? Yes No

WARNING: If you mark “Yes” in Item #8, you will be expected to file a written brief or statement after you receive a briefing schedule from the Board. The Board may summarily dismiss your appeal if you do not file a brief or statement within the time set in the briefing schedule.

9. Signature of Person Appealing (or attorney or representative):

Print Name:

Sign Here:

Date:

10. Mailing Address of Respondents/Applicants:

Name:

Street Address:

Apartment or Room Number:

City, State, Zip Code:

Telephone Number:

NOTE: You must notify the Board within five (5) business days if you move to a new address or change your telephone number. You must use the Change of Address Form/Board of Immigration Appeals (Form EOIR-33/BIA).

11. Mailing Address of Attorney or Representative for the Respondents/Applicants:

Name:

Street Address:

Suite or Room Number:

City, State, Zip Code:

Telephone Number:

Email:

NOTE: If an attorney or representative signs this appeal for you, he or she must file *with this appeal*, a Notice of Entry of Appearance as Attorney or Representative Before the Board of Immigration Appeals (Form EOIR-27).

12. PROOF OF SERVICE

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mailed or delivered a copy of this Notice of Appeal on

to

at

No service needed. I electronically filed this document, and the opposing party is participating in ECAS.

SIGN HERE:

NOTE: If you are the Respondent or Applicant, the “Opposing Party” is the Assistant Chief Counsel of DHS – ICE.

WARNING: If you do not complete this section properly, your appeal will be rejected or dismissed. If you do not attach a fee payment receipt or a completed Fee Waiver Request (Form EOIR-26A) to this appeal, your appeal may be rejected or dismissed.

HAVE YOU?

Read all of the General Instructions.

Provided all of the requested information.

Completed this form in English.

Provided a certified English translation for all non-English attachments.

Signed the form.

Served a copy of this form and all attachments on the opposing party, if applicable.

Completed and signed the Proof of Service.

Attached the required fee payment receipt or Fee Waiver Request.

Attached a completed and signed EOIR-27 for each respondent or applicant represented by an attorney or representative.

